MĀLĀ
SAIL CHARTERS

INTERNAL DOCUMENT · TEMPLATES & CHECKLISTS

Compliance Pack

The documents, forms, checklists and registers behind a crewed small-group sailing operation — vessel, crew, guests, hosts, data and country licensing.

SEASON 2027 · VERSION 1.0

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Applies to	All trips, all destinations, all hosts and crew
Next review	Before the first departure of the 2027 season, and annually thereafter
Classification	Internal. Contains templates — not for publication as-is.

Read this first

How to use this pack

This is a working toolkit, not legal advice

Everything in this pack is a **template, checklist or register**. It is written to be practical and to reflect how small commercial sailing operations are usually run — but it is not legal advice and it does not replace the rules that actually bind you.

- The **flag state** of the vessel decides which licence, coding, crewing and equipment rules apply.
- The **coastal state** where you sail decides whether you may charter there at all.
- Your **insurer** decides what is covered — and a licence that does not match the charter you are selling is the fastest way to void a policy.
- Have the guest-facing documents (Section 2 and 3) reviewed by a lawyer qualified in Spanish consumer law before you use them with paying guests.

Three rules for using the pack

1. **Fill the blanks.** Anything in square brackets — *[legal name], [NIF], [registered address]* — is a placeholder you must complete.
2. **Keep the signed originals.** A waiver that exists but was never signed is worth nothing. Store signed copies with the trip file (Section 9).
3. **Verify locally, every season.** Country rules in Section 8 change. Confirm them with the local maritime authority or charter agent before the first departure each year.

Priority action before the 2027 season. The Privacy Policy on the website still carries a note that the business is not yet registered, and there is no legal name, NIF or registered address anywhere in the published documents. Until that is fixed, the booking terms, the privacy policy and every invoice are incomplete. This is action number one in Section 1.

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Section 01

Operating model & who is responsible

Before a single form is signed, decide in which capacity the trip is sold. The licence, the insurance and the liability follow the capacity — not the brand on the website.

1.1 The three ways a trip can be sold

MODEL	WHO CONTRACTS WITH THE GUEST	VESSEL, FLAG & LICENCE	INSURANCE THAT RESPONDS
A. Operator	We do — we are the carrier and the organiser.	The vessel must be **commercially registered and licensed** in its flag state for charter work.	Commercial charter insurance in our name: hull & machinery plus P&I.
B. Organiser with a local operator	We do, but the boat and crew come from a licensed local charter company.	Their vessel, their flag, their charter licence. We must be named as an authorised reseller or intermediary.	Theirs responds on board; ours responds for our own organising activity.
C. Retailer / seat on a licensed boat	The licensed operator (for example, a cabin charter out of Phuket).	Theirs entirely.	Theirs. We hold professional indemnity and public liability for our own advice and marketing.

Why this page matters most. The moment you market and sell a trip *as a package in your own name*, EU consumer law (the Package Travel Directive, 2015/2302) can treat you as the **organiser** — with information duties and an insolvency-protection obligation. If you only introduce a guest to a licensed operator, say so clearly, everywhere, or you risk being treated as the organiser anyway.

1.2 Decide and record, before the season

- ☐ Choose the model (A, B or C) for each trip and write it in the trip file.
- ☐ Agree who issues the guest's invoice, in which currency and from which entity.
- ☐ Confirm whose insurance responds if a guest is injured on board.
- ☐ Confirm who is the data controller for the guest's booking data.
- ☐ Confirm who holds the charter licence for the country of operation.
- ☐ Confirm who is liable if the trip is cancelled at the last minute.

1.3 Business registration & tax

ITEM	WHAT TO DO	STATUS
Legal entity	Register as *autónomo* or a company (SL). Record the legal name, NIF and registered address.	[to do]
Activity codes	Register the charter/brokerage activity with Hacienda (IAE epígrafe) and with Seguridad Social.	[to do]
Invoicing	Issue compliant invoices: legal name, NIF, address, invoice number, date, description, VAT treatment, currency.	[to do]
VAT — place of supply	Short-term hire of a pleasure boat is normally taxed where the boat is put at the guest's disposal. Cross-border trips need an accountant's view, not a guess.	[ask accountant]
Travel-agent margin scheme	If we sell an all-inclusive trip in our own name using third-party suppliers, the EU margin scheme (TOMS) may apply. Confirm before invoicing.	[ask accountant]
Tourist taxes	Some regions (for example the Balearics) levy a sustainable-tourism tax per night. Budget it and state who pays.	[verify]

1.4 Consumer law: is it a package?

A charter on its own is usually a single travel service. It becomes a **package** when two or more different travel services are combined for the same trip — for example the charter plus flights, plus a hotel night, plus a transfer, sold together or billed together.

- ☐ If we sell only the charter and the guest books their own flights, record that decision in writing.
- ☐ If we arrange anything else as well, assume the package rules apply and provide the standard information form before booking.
- ☐ If we take money for another supplier and pass it on, check the "linked travel arrangement" rules.
- ☐ Note that the 14-day right of withdrawal does **not** apply to leisure services on a specific date — a charter is one. Say so in the terms so nobody asks for it.

Section 02

Customer-facing documents

These are the documents a guest sees. Two are already published on the website; both have gaps that must be closed before taking a paying booking.

2.1 Document register

DOCUMENT	WHERE IT LIVES	GAPS TO CLOSE
Terms & Conditions	terms.html (published)	Add legal name, NIF and address; state whether the trip is a package; add the insurance requirement; add price, deposit and balance clarity; add the alternative-dispute-resolution route; confirm the cancellation tiers.
Privacy Policy	privacy.html (published)	Add the controller's legal name, NIF and address; extend retention to cover booking and accounting records (tax law requires several years); list the processors actually used; add the international-transfer safeguard.
Cookie notice	privacy.html, section 6	Fine as a statement. If any advertising or analytics cookie is ever added, a consent banner becomes mandatory.
Cancellation & refunds	terms.html, section 3	Align the tiers with how deposits are actually taken; state what happens when the guest's place is resold.
Complaints & ADR	terms.html, section 7	Name the consumer arbitration body and the EU online dispute resolution route.
Records of processing	Internal (not published)	Keep a simple internal register: what data, why, legal basis, retention, who it is shared with. Required under GDPR Article 30 in most cases.

2.2 Minimum content checklist for booking terms

- ☐ Trading name, legal name, NIF and address
- ☐ Description of the trip and what is included
- ☐ Total price, deposit and balance dates
- ☐ What is excluded (flights, alcohol, insurance, meals ashore)
- ☐ Cancellation tiers and who bears the loss
- ☐ Our right to cancel or change for weather or safety
- ☐ Insurance the guest must hold, at minimum
- ☐ Passport, visa and health requirements
- ☐ The skipper's authority on board, in writing
- ☐ Behaviour and early-termination rules
- ☐ Liability and its limits
- ☐ Force majeure
- ☐ Data protection and image rights
- ☐ Governing law and jurisdiction

- [ ] Complaints procedure and ADR route
- [ ] Package information form, if a package

> **Guest insurance.** The terms "strongly recommend" insurance. For a commercial charter that is too soft. State the **minimum cover required** — medical, repatriation, cancellation, personal liability and, where water sports are offered, water-sports cover — and require the guest to confirm it before departure.

Section 03

Pre-contract & onboarding forms

Six forms. Two are checklists, four are templates with a signature block you can copy straight into a PDF or an e-signature tool.

FORM	PURPOSE	WHEN
Booking form / charter agreement	Creates the contract: parties, dates, price, payment schedule, inclusions.	At booking
Guest information form	Practical data: identity, dietary needs, experience, emergency contact.	On confirmation
Health & fitness declaration	Flags conditions the skipper must know about; protects everyone's safety.	60 days before
Risk acknowledgement	Records that the guest understood the inherent risks and accepted the skipper's authority.	Before departure
Media consent	Opt-in consent for photography and video, with the right to withdraw.	Before departure
Parental consent	Needed for any guest under 18 travelling without both guardians.	Before departure

3.1 Guest information form

Full name (as in passport) _____

Nationality & date of birth _____

Passport number & expiry _____

Trip & dates _____

Email & mobile _____

Cabin preference _____

Dietary requirements / allergies _____

Sailing experience (none is fine) _____

Swimming ability _____

Travel insurance policy & cover _____

Emergency contact — name, relation, phone _____

Arrival flight / transfer details _____

3.2 Health & fitness declaration

To be completed by every guest. Answering "yes" does not automatically exclude anyone — it means the skipper must know before departure.

- ☐ Any condition affecting balance, mobility or consciousness
- ☐ Heart or respiratory condition
- ☐ Pregnancy
- ☐ Recent surgery or injury
- ☐ Prescription medication carried on board
- ☐ Severe allergy requiring medication
- ☐ Any condition affected by heat, sun or motion
- ☐ Anything else the skipper should know

Declaration: I confirm the information above is accurate and complete. I understand that sailing, swimming and water sports carry inherent risks and that I should consult a doctor if I am in any doubt about my fitness to take part.

GUEST NAME _____ SIGNATURE _____ DATE _____

3.3 Risk acknowledgement & liability agreement

Please read carefully before signing. This document does not exclude liability for death or personal injury caused by negligence, or for anything that cannot lawfully be excluded — but it records that you understood the risks and accepted the rules of the vessel.

1. I understand that sailing, swimming, snorkelling, use of the tender and use of water toys are activities with inherent risk, including the risk of injury or, in extreme circumstances, death.
2. I confirm that I can swim and that I will wear a lifejacket whenever the skipper asks me to.
3. I agree to follow the skipper's instructions at all times. The skipper is the sole final authority on board on all matters of safety, route and weather.
4. I understand that the itinerary may change at any time for weather, safety or technical reasons, and that no refund arises from such a change.
5. I confirm that I hold travel and medical insurance covering this trip, including medical treatment and repatriation.
6. I understand that the skipper may end my participation, without refund, if my behaviour endangers the vessel, the crew, other guests or me.
7. I understand that alcohol and any substance may impair my judgement on and around the water, and I accept responsibility for my own consumption.

GUEST NAME _____ SIGNATURE _____ DATE _____

3.4 Media consent

Photographs and video are taken during the week, both by us and by other guests. Please choose one option and sign below.

- ☐ **Yes** — you may use photographs or video in which I appear on the Mālā Sail Charters website, social media and printed material, with no time limit.
- ☐ **Yes, but not my face** — you may use images where I am not identifiable.
- ☐ **No** — please do not use images in which I appear. I will step out of group shots.

I understand I may withdraw this consent at any time by writing to malasailcharters@gmail.com, and that images already printed may not be recoverable.

GUEST NAME | SIGNATURE | DATE

3.5 Parental consent (guests under 18)

Minor's full name & date of birth

Accompanying adult

Parent / guardian name & contact

Relationship

I authorise my child to take part in the charter, including supervised swimming, snorkelling and use of the tender, and I confirm they can swim.

PARENT / GUARDIAN SIGNATURE | DATE

Section 04

Safety management

The documents that keep a week safe and, if anything goes wrong, keep the record straight. Print the briefing sheet and risk assessment for every departure.

4.1 Pre-departure safety briefing — checklist

- ☐ Lifejacket location, sizes and how to fit one
- ☐ Safety harnesses and jackstays
- ☐ Liferaft location and launching
- ☐ Flares and their storage
- ☐ Fire extinguishers, blanket and engine shut-off
- ☐ Gas system: shut-off and detector
- ☐ Bilge pumps and alarms
- ☐ First-aid kit and medical supplies
- ☐ VHF radio, distress button and how to call Mayday
- ☐ EPIRB / PLB location
- ☐ Man-overboard procedure and throwing line
- ☐ Abandon-ship procedure and muster point
- ☐ Below-decks hazards: hatches, steps, hot surfaces
- ☐ Rules on board: alcohol, smoking, sun, hydration
- ☐ Tender use and boarding rules
- ☐ Swimming and snorkelling rules and buddy system
- ☐ Waste, water use and marine-park rules
- ☐ Emergency contacts and the daily plan

Briefed by: _____ *Date:* _____ *All guests present:* _____

4.2 Emergency action plan — quick cards

SCENARIO	IMMEDIATE ACTIONS
Man overboard	Shout "man overboard", throw flotation, press MOB on the plotter, assign a spotter who does not lose sight, bring the boat back under engine, recover on the leeward side, treat for hypothermia, call Mayday if not recovered fast.
Fire	Raise the alarm, cut the fuel and gas, fight only small fires with the correct extinguisher, move guests upwind and to the foredeck, prepare to abandon ship, Mayday.
Medical emergency	First aid, call Mayday or the coastguard for medical advice, identify the nearest hospital and the fastest route, keep the guest's declaration and medication list with them.
Abandon ship	Mayday with position, lifejackets on, grab bag and water, launch the liferaft, board from the leeward side, stay tethered to the raft, do not swim away from the vessel.
Severe weather	Reef early, brief guests, secure loose gear, lifejackets on, decide whether to run for shelter or heave to, monitor forecasts continuously.
Flooding	Locate the source, use the bilge pumps and manual pump, plug what can be plugged, Mayday, head for the nearest safe haven.
Collision / grounding	Check all persons, sound the alarm, assess hull damage, notify the coastguard, do not continue if the integrity of the hull is in doubt.
Security / piracy	Follow the flag-state and local guidance, do not resist, alert the authorities, keep guests below and calm.

4.3 Risk assessment register

ACTIVITY	HAZARD	CONTROL	REVIEWED BY
Swimming from the boat	Drowning, currents, boat drifting	Engine off and in neutral, ladder down, buddy system, headcount before and after, swim line, skipper on watch, no swimming at night or offshore without a line.	Skipper
Snorkelling	Drowning, boat traffic, sun exposure	Buddy pairs, high-visibility buoy, stay within sight of the boat, no diving alone, briefing on breathing and equalising.	Skipper
Tender / dinghy	Capsize, propeller strike, falling overboard	Lifejackets, kill cord attached, nobody on the tube while moving, load within limit, one hand for the boat.	Skipper
Water toys	Impact, entanglement, fatigue	Briefing, lifejackets, supervision, no towing near other swimmers, stop if conditions deteriorate.	Skipper
Sun and heat	Burns, heat exhaustion, dehydration	Shade, water always available, reef-safe sunscreen encouraged, schedules adapted to mid-day heat.	Skipper / host
Alcohol	Impaired judgement near water and machinery	Clear rule that guests do not operate any equipment while drinking; limit intake near water; the skipper does not drink while in charge.	Skipper
Guests below decks under way	Falls, seasickness, injury in rough conditions	Briefing to stay seated in the saloon, hatches secured, grab rails used, the skipper warns before manoeuvres.	Skipper
Excursions ashore	Injury, missed departure, local risks	Agreed return time, contact numbers, local advice on currents and wildlife, no solo trips.	Host / skipper

4.4 Daily operational checklist

- [ ] Weather forecast checked and logged
- [ ] Engine oil, coolant and belts checked
- [ ] Bilges checked and dry
- [ ] Rig, sails and lines inspected
- [ ] Gas system and detector
- [ ] Fresh water and fuel levels
- [ ] Guest headcount on departure and arrival
- [ ] Position and float plan shared ashore
- [ ] Waste sorted and stored
- [ ] Anchor watch or mooring checked overnight

4.5 Incident and near-miss report

Record every incident **and every near miss**, however small. Near misses are the cheapest safety data you will ever get. Retain for at least five years.

Date, time and position _____

Trip and vessel _____

People involved _____

What happened _____

Immediate action taken _____

Injuries / damage / authorities notified _____

Root cause and follow-up _____

REPORTED BY	SIGNATURE	DATE
_____	_____	_____

Section 05

Vessel compliance

The papers the vessel must carry, the insurance that must respond, and the environmental duties that apply whenever the boat is at sea.

5.1 Documents carried aboard

DOCUMENT	WHY IT MATTERS	EXPIRY
Certificate of registry	Proves flag and ownership. Must match the name on the insurance.	[ ]
Commercial charter licence	Without it, chartering for reward is unlawful in most coastal states.	[ ]
Certificate of seaworthiness / coding certificate	Confirms the boat meets the equipment and stability standard for commercial use.	[ ]
Tonnage certificate	Sets the manning and equipment tier that applies.	[ ]
Ship radio licence	Licences the VHF/DSC and the MMSI.	[ ]
Operator's radio certificate	SRC or GOC, held by the person on watch.	[ ]
Insurance certificate (H&M and P&I)	Ports and marinas ask for it. So does the coastguard.	[ ]
LSA and FFE servicing certificates	Liferaft, extinguishers, EPIRB battery, flares.	[ ]
Crew list and crew licences	Required on most commercial passages.	[ ]
Charter agreement / booking contract	Shows the boat is on charter, not private.	[ ]
Transit log / cruising permit	Where the coastal state requires one (Greece, Thailand and others).	[ ]
Stability booklet and safety plan	Required at higher coding tiers; good practice always.	[ ]

5.2 Insurance — what the policy must actually cover

- [ ] **Hull & machinery** — the vessel itself, including tender and toys.
- [ ] **P&I / third-party liability** — injury to guests and crew, and damage to others.
- [ ] **Commercial charter use** explicitly named. A private policy will not respond.
- [ ] **Geographic limits** — confirm every sea area you sail in is inside the cruising range.
- [ ] **Crew cover** — including the skipper and any paid host.
- [ ] **Water sports and tender liability**, if you offer them.

- [ ] **Professional indemnity** for the organising and marketing side of the business.
- [ ] **Certificates for the flag** — a copy on board, in the language the port expects.

5.3 Environmental duties (MARPOL and local rules)

ANNEX	WHAT IT COVERS	OUR PRACTICE
I — Oil	Discharge of oil and oily bilge water.	No discharge. Bilges checked daily; oily waste landed ashore.
IV — Sewage	Discharge of sewage, with stricter rules in some waters.	Use shore facilities and pump-out where available; respect local no-discharge zones.
V — Garbage	Disposal of all waste, including plastics.	Nothing over the side. Waste sorted on board and landed at port. Keep a garbage log.
VI — Air	Emissions, fuel sulphur, incineration.	Correct fuel for the area, no burning of waste, engine maintained.
Antifouling & hull	Invasive species and toxic coatings.	Appropriate antifouling; hull cleaned in a yard, not in the water.
Marine protected areas	Mooring and anchoring bans.	Check before every anchorage — for example Posidonia rules in the Balearics, marine parks in Antigua and national-park fees in Thailand.

5.4 Servicing intervals (typical — confirm for your flag)

ITEM	TYPICAL INTERVAL	RECORD KEPT
Liferaft	Annual service	Certificate on board
Fire extinguishers	Annual	Certificate on board
Flares / pyrotechnics	Replace at expiry (usually 3 years)	Expiry list
EPIRB / PLB battery	Per manufacturer (often 5 years)	Battery date
Lifejackets	Annual inspection	Checklist
First-aid kit	Before every departure	Daily checklist
Gas system	Annual, plus a bubble test each trip	Certificate and log
Engine	Per manufacturer hours	Maintenance log

Section 06

Crew compliance

One page that, if a port authority or an insurer asks, answers every question about who is in charge and why they are qualified to be.

6.1 Captain's credential file

DOCUMENT	WHAT IT DEMONSTRATES	EXPIRY
Commercial licence (Captain 200GT)	Professional command of vessels up to 200 gross tonnes.	[ ]
STCW certificate of competency	The international standard for the certificate held.	[ ]
STCW basic safety training (A-VI/1)	Personal survival, fire fighting, elementary first aid, personal safety.	[ ]
Medical fitness certificate	ENG1 or the flag-state equivalent, in date.	[ ]
GMDSS / radio operator certificate	SRC or GOC, matching the equipment aboard.	[ ]
First-aid certificate	Beyond the STCW minimum; ideally current.	[ ]
Passport, visa and seaman's book	For crew on international passages.	[ ]
Proof of sea service / logbook	Supports licence renewals and upgrades.	[ ]

> **Keep a digital copy of every certificate** in a folder you can reach from a phone. Ports, marinas and insurers ask for these at the least convenient moment, and a photograph of a valid certificate beats a PDF you cannot find.

6.2 Employment status

- [ ] Decide whether the skipper is self-employed or employed, and record it in writing.
- [ ] Confirm the social-security position for work performed in other countries.
- [ ] If a host or facilitator joins, decide whether they are **crew or a guest** — the answer changes insurance, liability and manning.
- [ ] Keep rest-hour records where the operation is a commercial, crewed one.

Section 07

Hosts, facilitators & creators

The collaboration model — a free berth and a fee in exchange for bringing a group — creates three documents and one legal duty that most people forget.

7.1 Host / facilitator agreement — what it must state

CLAUSE	CONTENT
Parties & capacity	Who the host is, and that they are a guest or an invited collaborator — not crew, and not our employee.
Week & berth	The exact dates, the boat, and that the host's berth is complimentary.
Minimum group	The number of paid guests the host must bring for the week to run, and what happens if they do not reach it.
Host's fee	That the host sets their own retail price for their guests and keeps 100% of the difference above our rate. Confirm in writing that we never touch it.
Payments	Who collects from the guests, when, and how the balance reaches us.
Deliverables	The content agreed — posts, reels, stories — and by when.
Advertising disclosure	The host must label paid or incentivised promotion clearly. See 7.3.
Image rights	What we may reuse, where, for how long, and with what credit.
Conduct	The code of conduct in 7.4 applies to the host as well as the guests.
Cancellation	What happens if the host, the guests or we cancel, and who keeps what.
Insurance	The host confirms their own travel and medical insurance.
Data protection	If the host collects guests' details, they are a controller for that data and must handle it lawfully.
Governing law	Which law applies and where disputes are heard.

7.2 Creator / influencer collaboration — additional points

- [ ] State whether the berth is consideration for the content — if it is, the content is advertising.
- [ ] Agree the deliverables as numbers, not adjectives: two reels, five stories, one post.
- [ ] Agree when content may be published and for how long we may reuse it.
- [ ] Include a morality clause: content that damages the brand can end the agreement.
- [ ] Confirm the creator will not present themselves as our employee or agent.
- [ ] Confirm the audience is genuine — check for bought followers before agreeing value.

> **7.3 The duty everyone forgets: label the advertising.** A free berth given in exchange for promotion, or a payment, is **advertising**. Under the EU Unfair Commercial Practices Directive and Spain's advertising law, hidden advertising is an unfair practice — and the platform rules are stricter still. The host must use the platform's *paid partnership / branded content* label *and* a clear written disclosure (for example, "#ad" or "ad — free trip"), in a place a reader sees before they engage. Put this obligation in the agreement, and check it was done.

7.4 Code of conduct — hosts and guests

- Respect for crew, other guests, local people and the marine environment.
- No harassment, discrimination or aggression of any kind. Breach means removal at the next port, without refund.
- Follow the skipper's instructions on safety, always and without argument.
- Photography: respect the media-consent choices of others, and never film someone who has opted out.
- Alcohol in moderation, and never while operating any equipment.
- No illegal substances on board at any time.
- Leave every anchorage cleaner than you found it.

Section 08

Country-by-country checklists

Chartering for reward is licensed by the coastal state. These are the items to verify locally, for the destinations on the 2027 calendar. Rules change — confirm each one with the local maritime authority or a local charter agent before the first departure.

Read this before using any row below. What follows is a working checklist of the categories that usually apply, not a statement of the current law of each country. In several of these jurisdictions a foreign-flagged yacht may not charter commercially at all without a local licence — which is why a licensed local operator is sometimes the only route.

Spain — Mediterranean and Balearics

Licence to charter	A commercially registered Spanish vessel needs an operating licence; a foreign-flagged vessel has its own conditions. Confirm with the Capitanía Marítima.
Vessel registration	Commercial register entry; the boat must match the listed use.
Crew	A professional qualification appropriate to the vessel and area; medical certificate in date.
Taxes	VAT on the charter in the applicable form; regional sustainable-tourism tax in the Balearics.
Local rules	Posidonia anchoring restrictions, marine reserves, and specific mooring rules in the Balearics.
Verify with	Dirección General de la Marina Mercante / Capitanía Marítima; [harbour master]

Greece — Ionian

Licence to charter	Professional charter requires a Greek charter licence and a properly registered professional yacht. With a foreign flag, confirm that chartering is permitted.
Contract form	A charter party in the standard form, filed with the port authority.
Permits and logs	Transit log / cruising permit; a copy aboard and produced on demand.
Taxes	The annual cruising tax on the vessel, plus VAT treatment of the charter.
Local rules	Port police clearances, and restrictions on anchoring in archaeological and protected zones.
Verify with	Hellenic Coast Guard / port authority; [local charter agent]

Italy — Amalfi coast and islands

Licence to charter	Commercial charter of a pleasure vessel requires a charter licence and a registered charter vessel. Foreign-flagged vessels need their own authorisation.
Contract form	A written charter agreement; for foreign-flagged vessels a formal charter declaration handled through an agent.
Crew	Qualification appropriate to the vessel and cruising area.
Taxes	VAT on the charter according to the place of supply; possible local tourist taxes ashore.
Local rules	Marine protected areas and anchoring bans, particularly around the Amalfi coast and the islands.
Verify with	Capitaneria di Porto; [local charter agent]

Portugal — Algarve

Licence to charter	Commercial recreational use requires a commercial registration and the relevant authorisation.
Crew	Appropriate professional qualification; medical certificate in date.
Taxes	VAT on the charter in the applicable form.
Local rules	Protected coastal and marine areas; seasonal anchoring restrictions.
Verify with	Direção-Geral de Recursos Naturais, Segurança e Serviços Marítimos (DGRM); [harbour master]

Antigua & Barbuda — Caribbean

Licence to charter	A charter licence is required. Visiting yachts usually need a specific visiting-charter arrangement; confirm the current route.
Permits and logs	Clearance in and out, cruising permit, and any marine-park fees.
Crew	Appropriate qualification; the skipper is usually named on the documentation.
Taxes	Charter tax and tourism-related levies may apply.
Local rules	Marine park anchoring rules and buoy fees.
Verify with	Antigua & Barbuda Port Authority / Immigration; [local agent]

Mauritius — Indian Ocean

Licence to charter	Chartering for reward requires a licence; confirm the vessel's eligibility and the local agent's role.
Permits and logs	Clearance procedures and any lagoon or marine-park permissions.
Taxes	VAT and any tourism levy on the charter.
Local rules	Lagoon and reef protection rules; restrictions around protected marine areas.
Verify with	Mauritius Ports Authority / Tourism Authority; [local agent]

Thailand — Phuket and the Andaman Sea

Licence to charter	Commercial chartering is normally restricted to Thai-registered, licensed vessels. Sailing with a foreign-flagged yacht as a commercial charter is generally not permitted — which is why a licenced local operator with a Thai-registered fleet is the practical route.
Contract form	Handled by the licensed operator; the guest's contract must name the correct carrier.
Permits and fees	National-park fees, and clearance requirements for the areas visited.
Local rules	National marine parks, anchoring restrictions, and protected dive and snorkel sites.
Verify with	Marine Department / Thai charter operator; [local agent]

> **Practical consequence for the 2027 season.** For Thailand, the compliant structure is *model C*: a licensed Thai operator holds the vessel, the licence and the insurance, and we sell alongside them. Make sure the guest's contract, invoice and insurance certificate name the right carrier — not us.

Section 09

Registers, calendar & document control

Compliance is not a document — it is a document that is still in date. This is the page that keeps it that way.

9.1 Renewal calendar

ITEM	RENEWED WITH	FREQUENCY	NEXT DUE
Vessel insurance (H&M, P&I)	Broker	Annual	[date]
Charter licence	Local authority	Annual	[date]
Certificate of seaworthiness / coding	Flag authority or surveyor	Annual to five-yearly	[date]
Ship radio licence	Telecoms authority	Annual	[date]
Liferaft service	Service station	Annual	[date]
Fire extinguishers	Service station	Annual	[date]
Flares	Chandler	At expiry	[date]
EPIRB battery	Service station	Per manufacturer	[date]
Captain's medical certificate	Approved doctor	Per validity	[date]
STCW refresher / updating	Training provider	Per requirement	[date]
Privacy policy review	Internal / adviser	Annual	[date]
Terms review	Adviser	Annual	[date]

9.2 Document register — where the originals live

DOCUMENT	ORIGINAL HELD	DIGITAL COPY
Vessel certificates	[physical folder]	[cloud folder]
Captain's licences and medicals	[physical folder]	[cloud folder]
Insurance policies and certificates	[broker]	[cloud folder]
Signed guest forms	[trip file]	[cloud folder]
Host and creator agreements	[cloud folder]	[cloud folder]
Incident reports	[trip file]	[cloud folder]
Records of processing (GDPR)	[cloud folder]	[cloud folder]

9.3 Trip file — what travels with every departure

- [ ] Charter agreement and invoice for every guest
- [ ] Guest information forms
- [ ] Health declarations
- [ ] Signed risk acknowledgements
- [ ] Media consent choices
- [ ] Parental consent, where relevant
- [ ] Insurance confirmations for all guests
- [ ] Crew list and certificates
- [ ] Vessel documents and insurance certificate
- [ ] Completed safety briefing sheet
- [ ] Risk assessment for the planned activities
- [ ] Emergency contacts and float plan left ashore

9.4 Annual review

1. Re-check every country checklist in Section 8 against the seasons you are actually selling.
2. Confirm the insurance still matches the routes, the activities and the entity that contracts.
3. Update the privacy policy and the terms, and re-date them on the website.
4. Refresh the safety briefing with anything learned from the season's incidents and near misses.
5. Archive the previous season's trip files and incident reports.

Section 10

Authority & adviser directory

The organisations that actually decide whether you may sail. Fill in your own contact at each one — the difference between a licence and a fine is usually a phone number.

WHO	WHAT THEY DECIDE	OUR CONTACT
Flag-state maritime authority	Registration, coding, manning and equipment for the vessel.	[fill in]
Spanish maritime authority (DGM / Capitanía)	Operating licence and commercial registration in Spain.	[fill in]
Insurance broker	Cover, limits, geographic range and certificates.	[fill in]
Accountant / tax adviser	Registration, invoicing, VAT place of supply, margin scheme.	[fill in]
Consumer-law lawyer	Terms, waivers, package-travel exposure.	[fill in]
Spanish data protection authority	GDPR compliance. Agencia Española de Protección de Datos — www.aepd.es	AEPD
Local charter agent	Licences, permits and clearances in each destination country.	[fill in per country]
Marine park authorities	Anchoring, mooring and visitor fees in protected areas.	[fill in per destination]
MCA (UK) — if applicable	Coding and ENG1 medicals for UK-flagged operation.	[if used]

Contact

Mālā Sail Charters — [legal name] — [NIF] — [registered address]
malasailcharters@gmail.com · +34 678 092 34 · malasailcharters.com

End of pack. Templates and checklists only — not legal advice. Have the guest-facing documents in Sections 2 and 3 reviewed by a lawyer qualified in the jurisdictions you sell into, and confirm every licensing point in Section 8 with the authority named there. Nothing in this pack is a substitute for a valid charter licence, a valid insurance policy, or the rules of the flag and coastal states.